

23STCV16635 23STCV16635

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-08-19

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Case Number: 23STCV16635 Hearing Date: August 19, 2026 Dept: 512

HEARING DATE: Weds., August 19, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Di

Bona Ventura, et al. v. Lachman, et al. COMP.

FILED: 07-17-23

CASE NUMBER: 23STCV16635

NOTICE NO

PROCEEDINGS: MOTION TO SUBSTITUTE DEFENDANT

MOVING PARTY: Plaintiffs Kimberly Di Bonaventura and Boomin'

Real Estate on behalf of Defendant Jonathan Lachman

RESP. PARTY: None

MOTION TO

SUBSTITUTE DEFENDANT

(Prob. Code, § 9370)

TENTATIVE RULING:

Plaintiffs

Kimberly Di Bonaventura and Boomin' Real Estate, LLC's Motion for Order to

Substitute in Administrator Allison B. Margolin for the Estate of Jonathan Lachman is CONTINUED to Friday, September 18, 2026, at 9:00 a.m. in Department 512 of the Stanley Mosk Courthouse.

At least 16 court days prior to the next scheduled hearing, Plaintiffs are to file proper proof of service demonstrating the Motion and notice of hearing were served on all parties to the action as well as Allison B. Margolin.

The Court continues Order to Show

Cause Re: Dismissal as to Defendant Jonathan Lachman; Order to Show Cause Re: As To Striking of Defendant Omerta Farms LLC's answer due to non-representation of counsel; and Status Conference re: Pleadings to Friday, September 18, 2026 at 9:00 a.m.

Moving parties are ordered to give notice.

SERVICE:

☐ Proof of Service Timely Filed (CRC, rule 3.1300) NO

☐ Correct Address (CCP §§ 1013, 1013a) NO

☐ 16/21 Court Days Lapsed (CCP §§ 12c, 1005(b)) NO

OPPOSITION: None

filed as of August 14, 2026 ☐ Late ☒
None

REPLY: None

filed as of August 14, 2026 ☐ Late ☒
None

ANALYSIS:

I.

Background

On July 17, 2023, Plaintiffs Kimberly Di Bonaventura and Boomin' Real Estate ("Plaintiffs") filed a Complaint for

Breach of Settlement Agreement against Defendants Johnathan Lachman and Omerta Farms, LLC ("Defendants") and Does 1-50.

On November 13, 2023, Defendants filed an Answer.

On June 26, 2026, Plaintiffs filed the instant Motion for Order to Substitute in Administrator Allison B. Margolin for the Estate of Jonathan Lachman (the "Motion").

To date, no Opposition to the Motion has been filed.

II. Legal Standard

Probate Code section 9370 states:

(a) An action or proceeding pending against the decedent at the time of death may not be continued against the decedent's personal representative unless all of the following conditions are satisfied:

(1) A claim is first filed as provided in this part.

(2) The claim is rejected in whole or in part.

(3) Within three months after the notice of rejection is given, the plaintiff applies to the court in which the action or proceeding is pending for an order to substitute the personal representative in the action or proceeding. This paragraph applies only if the notice of rejection contains a statement that the plaintiff has three months within which to apply for an order for substitution.

(b) No recovery shall be allowed in the action against property in the decedent's estate unless proof is made of compliance with this section.

(Prob. Code, § 9370.)

III.

Discussion

Plaintiffs move to substitute in Administrator Allison B.

Margolin as a defendant in this litigation for Lachman, who is deceased. (Motion, Clark Decl.) The Motion includes a claim rejected by Margolin, which states that notice of the rejected claim was given on March 30, 2026. (Motion, Clark Decl., Exh. 4.)

As an initial matter, the Court finds there is no proof of service filed demonstrating the Motion and notice of hearing have been served in any manner on Defendants or Allison B. Margolin.

Thus, the Motion is CONTINUED to allow Plaintiffs an opportunity to file proper proof of service demonstrating the Motion and notice of hearing were served on all parties to the case as well as Margolin.

IV.

Conclusion

& Order

For the foregoing reasons, Plaintiffs Kimberly Di Bonaventura and Boomin' Real Estate, LLC's Motion for Order to Substitute in Administrator Allison B. Margolin for the Estate of Jonathan Lachman is CONTINUED to Friday, September 18, 2026, at 9:00 a.m. in Department 512 of the Stanley Mosk Courthouse.

The Court continues Order to Show Cause Re: Dismissal as to Defendant Jonathan Lachman; Order to Show Cause Re: As To Striking of Defendant Omerta Farms LLC's answer due to non-representation of counsel; and Status Conference re: Pleadings to Friday, September 18, 2026 at 9:00 a.m.

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